

1.

CASE #	CASE NAME	HEARING NAME
CVME2611041	In re: TONET ALVAREZ	HEARING ON PETITION FOR APPROVAL OF TRANSFER OF STRUCTURED SETTLEMENT PAYMENT RIGHTS

Tentative Ruling:

No proof of service has been filed with the court on the Petition. Petitioner is to appear to discuss the setting of further status.

2.

CASE #	CASE NAME	HEARING NAME
CVRI2504032	ELSHABASY vs CITY OF RIVERSIDE, A CALIFORNIA CHARTER CITY AND MUNICIPAL CORPORATION	MOTION FOR RECONSIDERATION OF COURT ORDER GRANTING DEMURRER

Tentative Ruling:

The Parties have filed a Stipulation allowing Plaintiff to file a First Amended Complaint. The Stipulation was signed by the City of Riverside, the movant on the Demurrer, on 8/11/2026. The Demurrer was heard on 8/12/2026, one day later. The filing of the FAC moots the Demurrer. Accordingly, the Court accepts the parties stipulation. The Court has signed the stipulation. The Court vacates its order on 8/12/2026 sustaining the Demurrer.

Plaintiff is ordered to file the FAC within 7 days of this order and serve all Defendants.

The Case Management Conference is continued to **12/2/2026** at 8:30 a.m. in Dept. 6. The OSC re: failing to file a Proof of Service is vacated.

Hearing date of 12/14/2026 on Motion to Vacate or Reconsider is also vacated as moot.

3.

CASE #	CASE NAME	HEARING NAME
CVRI2506210	GARDNER vs D&M GENERAL CONSTRUCTION, INC.	MOTION TO SET ASIDE DEFAULT

Tentative Ruling:

This motion is unopposed. Accordingly, the motion to set the Default entered on 7/14/2026 is set aside. The Motion to Quash service of the Summons and Complaint is

granted. The Court has signed the proposed order submitted by movant. Moving party is to give notice of this ruling.

4.

CASE #	CASE NAME	HEARING NAME
CVRI2602454	CHEN, M.D. vs UNIVERSAL HEALTH SERVICES OF RANCHO SPRINGS, INC.	MOTION FOR SPECIFIED DISCOVERY (CODE CIV. PROC. § 425.16(G))

Tentative Ruling:

Moving Party: Plaintiff Kenneth Chen, M.D.

Opposing Party: Defendants Universal Health Services of Rancho Springs, Inc. dba Southwest Healthcare System and Christine Hobbs

On 4/21/2026, Kenneth Chen, M.D. ("Plaintiff") filed a verified complaint for damages against Universal Health Services of Rancho Springs, Inc. dba Southwest Healthcare System ("UHS") and Christine Hobbs ("Hobbs" and collectively "Defendants") asserting various causes of action.

The complaint states that Plaintiff is a board-certified physician, currently practicing at the University of California, San Diego ("UCSD"). (Complaint, ¶ 7.) On 5/14/2025, while providing ICU coverage at a UHS facility, Plaintiff states he identified unsafe nursing practices. (*Id.* at ¶ 12.) The complaint alleges that thereafter, Hobbs and other nurses took retaliatory actions against Dr. Chen resulting in reassignment and a reduction in hours. (*Id.* at ¶ 40.) Relevant to this motion as well as the pending anti-SLAPP motion are two emails the complaint alleges were sent by Hobbs on 5/14/2025 and 5/15/2025. (the "May 14 Complaint" and the "May 15 Complaint"). The complaint states that via the May 14 Complaint and May 15 Complaint, Hobbs levied false accusations against Plaintiff regarding a failure to provide a "courtesy of a verbal notification when entering the ICU admission and critical medication orders" as well as being late to his shift and missing a "Code Blue." (*Id.* at ¶¶ 15-16.)

Now, Plaintiff brings a motion for specific discovery under CCP § 425.16(g), which allows a limited amount of discovery in order to respond to an anti-SLAPP motion (which otherwise stays discovery.) Plaintiff argues the discovery is necessary to oppose the anti-SLAPP motion. Specifically, Defendants' arguments that Plaintiff cannot show a probability of prevailing on the merits due to the May 14 Complaint and May 15 Complaint falling under the common interest privilege. Plaintiff states that the discovery is necessary to show malice to overcome the privilege. Plaintiff requests the following discovery be authorized by the court:

- Deposition of Christine Hobbs, limited to three hours
- Deposition of Raquel Mata, limited to three hours